

COURT FILE NO.: T-1488-26

FEDERAL COURT OF CANADA

BETWEEN:

APEX BIOTECHNOLOGIES CORP. (Plaintiff / Moving Party)

- and -

CYBERGEN PHARMACEUTICALS CANADA LTD. (Defendant / Responding Party)

LEGAL RESEARCH MEMORANDUM ON THE TEST FOR INTERLOCUTORY INJUNCTION UNDER CANADIAN LAW

PART I — OVERVIEW AND CONCISE STATEMENT OF FACTS

1. This memorandum reviews the governing principles for obtaining an interlocutory injunction in the Federal Court of Canada pursuant to Rule 373 of the Federal Courts Rules, SOR/98-106, in the context of urgent patent infringement and misappropriation of proprietary manufacturing bioprocesses.

2. The Plaintiff, Apex Biotechnologies Corp. ("Apex"), is the registered patentee of Canadian Letters Patent No. 2,987,654 (the "'654 Patent"). In August 2026, the Defendant, Cybergen Pharmaceuticals Canada Ltd., commenced commercial distribution and regulatory submission in Canada of a generic biosimilar formulation that directly incorporates the patented recombinant expression vectors claimed in Claims 1 to 14 of the '654 Patent.

3. Apex seeks an urgent interlocutory injunction restraining the Defendant from marketing, selling, importing, or distributing the infringing therapeutic compound pending trial of the underlying infringement action.

PART II — POINTS IN ISSUE

4. The central issue for determination is whether the Moving Party satisfies the tripartite test established by the Supreme Court of Canada in *RJR-MacDonald Inc. v. Canada (Attorney General)*, [1994] 1 S.C.R. 311:

- **Branch 1:** Is there a serious question to be tried?
- **Branch 2:** Will the Moving Party suffer irreparable harm if the injunction is refused?
- **Branch 3:** Does the balance of convenience favor the granting of interlocutory relief?

PART III — CANLII AND SUPREME COURT PRECEDENT ANALYSIS

5. **First Branch: Serious Question to be Tried:** The Supreme Court in *RJR-MacDonald* confirmed that the threshold for a serious question is low. The motions judge must simply satisfy themselves that the claim is neither frivolous nor vexatious. In patent actions, proof of an issued Canadian patent accompanied by expert affidavit evidence demonstrating a prima facie case of infringement amply satisfies this threshold (*American Cyanamid Co. v. Ethicon Ltd.*, [1975] A.C. 396; *AstraZeneca Canada Inc. v. Novopharm Ltd.*, 2010 FCA 112).

6. **Second Branch: Irreparable Harm:** Irreparable harm refers to the nature of the harm suffered rather than its magnitude. It is harm that cannot be quantified in monetary damages or cannot be cured by an award of damages at trial (*RJR-MacDonald* at para. 58). In commercial intellectual property litigation, the Federal Court of Appeal has consistently maintained that clear, non-speculative evidence of permanent market loss, price erosion, or irrevocable loss of commercial goodwill constitutes irreparable

harm (*Centre Ice Ltd. v. National Hockey League* (1994), 53 C.P.R. (3d) 34 (F.C.A.)).

7. **Third Branch: Balance of Convenience:** At this stage, the Court must determine which of the two parties will suffer the greater harm from the granting or refusal of an interlocutory injunction pending trial. Where the Plaintiff has made substantial capital investments in Canadian clinical trials and the Defendant has only recently entered the market with no established manufacturing footprint, the balance of convenience strongly favors maintaining the status quo (*Google Inc. v. Equustek Solutions Inc.*, 2017 SCC 34).

PART IV — CONCLUSION AND REQUESTED RELIEF

8. The evidentiary record establishes: (a) a valid Canadian patent claim with obvious direct infringement; (b) permanent price suppression that will permanently alter the Canadian public drug formulary reimbursement rate; and (c) a balance of convenience tilting overwhelmingly in favor of the Moving Party.

9. Accordingly, it is respectfully submitted that the tripartite test in *RJR-MacDonald* is met, and an interlocutory injunction should issue.

ALL OF WHICH IS RESPECTFULLY SUBMITTED this 1st day of September, 2026.

LEXOCRATES LITIGATION AND APPELLATE PRACTICE GROUP

Counsel for the Plaintiff